

# STATE OF NEW YORK

8913--A

## IN SENATE

January 15, 2026

Introduced by Sen. COONEY -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the cannabis law, in relation to limiting prohibitions of advertising of cannabis products or services on billboards

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph (k) of subdivision 2 of section 86 of the cannabis law is amended to read as follows:

(k) is in the form of a billboard that violates the provisions of paragraph (a), (b), (c), (d), (e) or (i) of this subdivision or paragraph (a) or (b) of subdivision three of this section or that includes any cannabis brand information; or

§ 2. Section 86 of the cannabis law is amended by adding two new subdivisions 2-a and 2-b to read as follows:

2-a. For purposes of this section a billboard shall mean any off-premises signage, of any size or any location. No billboard shall be permitted that does not advertise a licensee. A licensee shall not permit the use of their trademarks, brands, names, locations, or other distinguishing characteristics for third-party use on advertising in a manner that does not comply with the provisions of subdivision two of this section. On and after the effective date of this section, any billboard shall be permitted to provide at minimum the following information:

(a) A licensee's name, logo, entity name, or doing business as name;

(b) An address, phone number, email address, website URL or QR code;

(c) The nature of the business for which the entity is licensed; and

(d) Directional information to allow a consumer to locate such licensee.

2-b. A billboard which advertises a licensee in the manner permitted in subdivision two-a of this section, which has been in place prior to the effective date of the chapter of the laws of two thousand twenty-six which added this subdivision may continue, and any new billboard placed after such date shall comply with the requirements of subdivision two-a of this section. Regulations or guidance may be issued in a manner not inconsistent with the requirements of this section.

§ 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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